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Case Number: 24SMCV01678 Hearing Date: August 20, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

ISABEL BAEZ,

Plaintiff,

v.

VILLA MARINA MARKETPLACE, et al.,

Defendants.

Case No.: 24SMCV01678

Hearing Date: August 20, 2026

[TENTATIVE] order RE:

defendant JONES LANG LASALLE

AMERICAS, INC.'S MOTION FOR

Summary judgment

BACKGROUND

This case arises from a random attack on Plaintiff Isabel Baez by a vagrant at a mall. The Marketplace is an open-air shopping center in Marina Del Rey with an attached 5 level parking structure, owned by RAR2-Villa Marina Center CA, LLC1 (“Owner”) and managed by Jones Lang LaSalle Americas, Inc. (“JLL”). [UMF 1, 2]

Plaintiff was a wax specialist employed at the European Wax Center, a tenant at the shopping center. Plaintiff had been working there since July 2018. [UMF 4] On October 5, 2022, the date of the attack, the Allied personnel on duty included Shift Supervisor Kristi J. Cotton, Omar Espinoza, Shanbre Kamasa Hill, Bryant Donaldson, Lizbeth Cervantes, Jasmine Jones, Nicole Iyanni Coleman, Carolina Trujillo, Chirstopher Earle, Jennifer Grayson, and Christy Walker. [UMF 7]

Plaintiff testified that on the morning of the incident, she had biked to work and when she arrived, decided to get coffee at the East Coast Bagel at the Premises. [UMF 5] She indicated that before October 5, 2022, she had been going into the Marketplace about 4 to 6 times a week, without incident. [UMF 12] Plaintiff testified that she had never before been physically assaulted at the shopping center or reported to Allied that she was in danger in any way. [UMF 13, 14]

At around 7:00 a.m., Plaintiff was on her way back to the European Wax Center with her coffee. [UMF 5] She recalled walking past the CVS Pharmacy when, without warning, she felt a blow to her face. Plaintiff testified that the attack was so sudden, she did not see anyone coming and could not tell where the blow came from, except that she was hit on the left side of her face. [UMF 5, 6]

Leo Aguayo (“Aguayo”), who was making deliveries to CVS Pharmacy at that time, recalled seeing Stratton exit CVS, walk toward Plaintiff, strike her in the face, and then walk away. [UMF 10] Aguayo said he tried to stop Stratton, but he got away. [UMF 11] Kristi J. Cotton (“Cotton”), the Allied Shift Supervisor on duty, interviewed Plaintiff, Aguayo, and other individuals at the scene and prepared an Incident Report. [UMF 9-11] Plaintiff told Cotton she did not know Stratton and had never seen him before. [UMF 15, 16]

Before Stratton’s attack on Plaintiff, neither JLL, the Owner, nor Allied knew of Stratton, were aware of his presence at the Premises, were aware that he posed any danger to anyone, or received any reports about him. [UMF 17, 18, 19, 20] Previously, there were no other similar instances known to either JLL, the Owner, or Allied of strangers randomly striking anyone at the Premises without provocation. [UMF 21, 22, 23]

This hearing is on JLL’s motion for summary judgment. JLL argues that Plaintiff cannot establish that JLL had a duty to protect her from a random act of violence, that JLL breached its duty of care given the security measures employed by JLL, and that there is no causation as Plaintiff cannot articulate what measures JLL could have undertaken that would have prevented the random attack on Plaintiff.

LEGAL STANDARD

In evaluating a motion for summary judgment, the Court engages in a three-step process. First, the Court identifies the issues framed by the pleadings. The pleadings define the scope of the issues on a motion for summary judgment. (FPI Dev. Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 381-382.) Because a motion for summary judgment is limited to the issues raised by the pleadings (Lewis v. Chevron (2004) 119 Cal.App.4th 690, 694), all evidence submitted in support of or in opposition to the motion must be addressed to the claims and defenses raised in the pleadings.

The court cannot consider an impleaded issue in ruling on a motion for summary judgment. (Roth v. Rhodes (1994) 25 Cal.App.4th 530, 541.) The papers filed in response to a plaintiff’s motion for summary judgment may not create issues outside the pleadings and are not a substitute for an amendment to the pleadings. (Tsemetzin v. Coast Federal Savings & Loan Assn. (1997) 57 Cal. App.4th 1334,1342.)

Second, the Court must determine whether the moving party has met its burden. A moving plaintiff meets its burden by producing evidence to meet each element of its cause(s) of action. (Code Civ. Proc., § 437c, subd. (p)(1)).) California law does not require a moving plaintiff to negate a defendant's affirmative defenses to satisfy its initial burden. (Aguilar v. Atlantic Richfield Co., 25 Cal.4th at 853 (summary judgment law in this state no longer requires a plaintiff moving for summary judgment to disprove any defense asserted by the defendant as well as prove each element of his own cause of action.... All that the plaintiff need do is to "prove[] each element of the cause of action").)

Third, once the moving plaintiff has met its initial burden, the burden shifts to the opposing defendant to show that a material factual issue exists as to the cause(s) of action alleged or the affirmative defense(s) claimed. (Code Civ. Proc., § 437c, subd. (p); see generally *Bush v. Parents without Partners* (1993) 17 Cal.App.4th 322, 326-327.)

In ruling on the motion, the Court must consider the evidence and inferences reasonably drawn therefrom in the light most favorable to the opposing party. (Aguilar, 25 Cal.4th at 843.) Summary judgment is properly granted only if the moving party's evidence establishes that there is no issue of material fact to be tried. (*Lipson v. Super. Ct.* (1982) 31 Cal.3d 362, 374.)

DISCUSSION

JLL argues that no legal grounds exist to foist upon it the impossible duty of protecting Plaintiff against the type of unpredictable, senseless random act of violence perpetrated by Stratton. The Court agrees.

Duty is a question of law to be determined by the court. (*Ann M. v. Pacific Plaza Shopping Center* (1993) 6 Cal.4th 666, 674.) A defendant in a negligence action may obtain summary judgment by demonstrating that the evidence shows it owed no duty to the plaintiff that could have been breached. (*Vournas v. Fidelity Nat. Tit. Ins. Co.* (1999) 73 Cal.App.4th 668, 672.)

Cases involving third party criminal acts are analyzed differently from ordinary negligence. (*Wiener v. Southcoast Childcare Centers, Inc.* (2004) 32 Cal.4th 1138, 1150.) Courts are required to apply a "heightened sense of foreseeability" before they can hold a defendant liable for the criminal acts of third parties. (*Id.* at 1149-1150.)

The rationale for this rule is two-fold: First, it is difficult, if not impossible, to predict when a criminal might strike. Second, if a criminal decides on a particular goal or victim, it is extremely difficult to remove his every means for achieving that goal. (*Id.* at 1150.)

Courts look to the following factors in evaluating whether a defendant has a duty to provide precautionary measures against potential third party criminal conduct: (1) the degree of foreseeability that the danger would arise on the business's premises and (2) the relative burden that providing a particular precautionary measure will place upon the business. (*Delgado v. Trax Bar & Grill* (2005) 36 Cal.4th 224, 236-240.) The scope of the duty is then determined by balancing the foreseeability of the harm against the burden of the duty to be imposed. (*Id.* at 243.) "Foreseeability, when analyzed to determine the existence or scope of a duty, is a question of law to be decided by the court." (*Sharon P. v. Arman, Ltd.* (1999) 21 Cal.4th 1181, 1188.)

"Foreseeability" of third-party criminal conduct "rarely, if ever, can be proven in the absence of prior similar incidents of violent crime on the landowner's premises. To hold otherwise would be to impose an unfair burden upon landlords and, in effect, would force landlords to become the insurers of public safety, contrary to well-established policy in this state." (*Ann M.*, 6 Cal.4th at 679.)

"Although business proprietors owe a duty to their patrons to maintain their premises in a reasonably safe condition, with respect to third party criminal conduct, the duty is limited to taking reasonable steps to secure common areas against foreseeable criminal acts that are likely to occur in the absence of such precautionary measures." (*Id.* at 674.) An owner or possessor of land is not required to take precautions against conduct of third persons that the owner has no reason to anticipate. (*Riley v. Marcus* (1981) 125 Cal.App.3d 103, 109; *Jamison v. Mark C. Bloome Co.* (1980) 112 Cal.App.3d 570, 577.)

Sharon P. v. Arman, Ltd. (1999) 21 Cal.4th 1181 is instructive. There, the plaintiff sued the owner and operator of a commercial garage for negligence in failing to provide adequate security after she was sexually assaulted at gunpoint by an unknown assailant. (Id. at 1185.) The Supreme Court found that no duty could be imposed upon the garage owner where Plaintiff's sexual assault was not foreseeable. The court found it significant that the only evidence of other prior crimes against property or persons on the premises in the 27-month period preceding the assault were robberies of the bank on the ground floor of the premises. Since sexual assault is not a reasonably foreseeable risk associated with bank robberies, there was no duty to prevent against such an unforeseeable, vicious assault. (Id. at 1190.)

Alvarez v. Jacmar Pac. Pizza Corp. (2002) 100 Cal.App.4th 1190, is also helpful to the analysis. There, an argument between two restaurant patrons led to a fist fight at the restaurant parking lot. (Id. at 1194-1198.) Police officers were called but the fight ended before the officers arrived and the officers left. However, minutes later, the second patron returned and fatally shot decedent. (Id.) Plaintiff sought to hold the restaurant accountable under a premises liability theory, arguing that the fistfight between the decedent and the assailant and a prior armed robbery at the restaurant both increased the foreseeability of decedent's murder. (Id. at 1199-1200.) The court disagreed and held that the foreseeability that a patron would return to commit murder could not be established by a prior physical altercation and a previous unrelated robbery on the premises. (Id. at 1200.)

Here, there were four reported acts of violence at the marketplace in the years leading to Stratton's attack. First, a couple returning to their car from the AMC dine-in theater were robbed at gunpoint at the parking structure. Second, diners at Ruth's Chris Steakhouse were robbed and assaulted by three males who demanded their jewelry, cell phones and wallets. Third, a couple was robbed at gunpoint at the parking lot near DSW at around 10:00 pm. Fourth, an angry woman entered DSW looking for her girlfriend who worked at the store. When told to leave, the suspect grabbed a customer by the hair and pulled it several times before letting go. [UMF 22]

None of these incidents are remotely similar to Stratton's random, unprovoked assault and battery upon Plaintiff. The three robberies are probative only of the foreseeability of theft-related crimes. (Lopez v. McDonald's Corp. (1987) 193 Cal.App.3d 495, 510.) The fourth attack involving a romantic dispute that led to the attack on a customer also does not render the unprovoked attack on Plaintiff by a transient foreseeable. They provide no basis for concluding that Stratton's random and unprovoked assault on Plaintiff was foreseeable. (Ann M., 6 Cal.4th at 679-680 [commission of assaults and robberies do not make rape foreseeable].)

In addition to the above incidents, Plaintiff argues that the harm to her was foreseeable because of the proliferation of vagrants or transients on the property, including during the hours before her attack. But that fact alone cannot establish foreseeability. In *Ericson v. Federal Express Corp.* (2008) 162 Cal. App. 4th 1291, 1305-1307, Ericson was assaulted and robbed in FedEx's parking lot. Ericson argued that the assault was reasonably foreseeable because the area where he was assigned to park was dimly lit and isolated and FedEx had notice of transients living in the nearby canyons. (Id. at 1297.) Ericson admitted in testimony however that the transients he encountered were not aggressive or threatening. (Id.) The court found for FedEx, explaining that the "case boils down to a few sightings of nonthreatening transients on the FedEx property, and that does not satisfy even the "regular reasonable foreseeability" test. (Id. at 1305-1307.)

Similarly, JLL could not have foreseen a violent third-party assault by a transient based on its security guards' pre-incident non-violent encounters with transients at the property, including those on the date of the assault. In each of the encounters on the date of the assault, the transients were asked to leave the property and they complied. Far from evidencing the foreseeability of potential violence, these incidents showed that the transients were not violent but were compliant, and that Allied security personnel were doing their jobs.

Plaintiff also relies on several post-incident encounters with transients. But these incidents are irrelevant to the question of foreseeability. Evidence of prior similar incidents of crime on the owner's premises is what is required to prove the requisite degree of foreseeability in cases such as this. (Ann M., 6 Cal.4th at 679 & fn. 7.) Evidence of crimes that occur after the incident are of no utility in determining the critical issue of whether JLL had notice of the possible attack prior to its occurrence.

Because there is no triable issue on duty, the Court does not go on to consider the other grounds for granting summary judgment, including whether there is a triable issue on breach or causation.

CONCLUSION AND ORDER

Based on the foregoing, the Court GRANTS JLL's motion for summary judgment.

IT IS SO ORDERED.

DATED: August 20, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court